ALEXIO GWENZI
and
FIRST BATANI
and
EVELYN NATSAI MOYO
versus
MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS
and
OFFICE FOR THE REGISTRATION OF COMPANIES AND OTHER BUSINESS ENTITIES
and
CHIEF REGISTRAR OF COMPANIES AND OTHER BUSINESS ENTITIES
and
ZIMBABWE MUSIC RIGHTS ASSOCIATION

HIGH COURT OF ZIMBABWE
MUNANGATI-MANONGWA J
HARARE, 5 May 2026

Opposed Matter

W P Zhangazha with *E T Mandaza*, for the applicants
L T Muradzikwa with *P Moyo*, for the 1st, 2nd and 3rd respondents
No appearance for the fourth respondent

MUNANGATI-MANONGWA J: This is an urgent chamber application in which the three applicants seek interim relief in the form of a stay of execution of a decision made by the first respondent, the Minister of Justice, Legal and Parliamentary Affairs, pending the determination of a review application separately instituted under the Administrative Justice Act [*Chapter 10:28*]. The decision sought to be stayed is embodied in letters dated 26 March 2026, served upon each of the applicants on 8 April 2026, which purport to terminate their respective appointments as board members of the fourth respondent with immediate effect. The letters further direct the applicants to surrender all assets, records, and control of the fourth respondent to an unnamed interim administrator within seven days of receipt thereof.

After considering the facts and hearing the submissions the relief sought has to be granted. It being borne in mind that the interim relief of this nature is not a final adjudication of the merits. It is a temporary remedy designed to hold the position pending the resolution of

the substantive dispute. The court does not, at this stage, determine whether the impugned decision was in fact unlawful; it only determines whether the applicant has shown enough to warrant the preservation of the existing state of affairs until that question can be properly ventilated. The applicant's case needs therefore, not be unanswerable, it need only be sufficiently arguable.

BRIEF BACKGROUND

The three applicants are board members of the fourth respondent, a company limited by guarantee duly incorporated under the Companies and Other Business Entities Act [*Chapter 24:31*] ("Companies and Other Business Entities Act").

Following an Annual General Meeting convened in October 2025, the applicants were elected or returned as board members of the fourth respondent, with the requisite statutory forms lodged with the companies office. The board as constituted comprised both returning and newly elected members. Shortly thereafter, governance tensions within the fourth respondent attracted the attention of the first respondent's ministry, with numerous stakeholder complaints reportedly submitted concerning the organisation's operations.

On 8 April 2026, each applicant was served with a letter dated 26 March 2026, authored by the first respondent. The letters stated that, following receipt of complaints, an investigation had been conducted into the affairs of the fourth respondent under the Companies and Other Business Entities Act, which allegedly revealed serious governance and operational deficiencies. On that basis, the first respondent resolved to dissolve the board and terminated the applicants' appointments with immediate effect, directing them to surrender all assets, records, and control of the fourth respondent to an unnamed "interim administrator" within seven days of receipt.

Aggrieved thereby, the applicants instituted an urgent chamber application before this court seeking interim relief in the form of a stay of execution of the first respondent's decision, pending the determination of a substantive review application separately filed under the Administrative Justice Act [*Chapter 10:28*].

In opposition, the first respondent raised four points *in limine* which fall for determination before this court. These were articulated as follows:

1. That the second respondent was wrongfully cited.
2. That the applicants lack *locus standi* to institute the present proceedings
3. That the matter does not meet the threshold of urgency
4. That the application is not procedurally competent;

On citation of the second respondent

The objection that the second respondent has been improperly cited is without merit. Section 6(1) of the Companies and Other Business Entities Act is unambiguous in its terms. It provides that the office for the Registration of Companies and Other Business Entities:

> "shall be a body corporate capable of suing and being sued in its corporate name and, subject to this Act, of doing anything that bodies corporate may do by law."

The second respondent's legal personality is therefore not a matter of inference or implication; it is expressly conferred by statute. The attempt to invoke the State Liabilities Act [*Chapter 8:14*] in support of this objection fundamentally misapprehends the nature of the second respondent: it is not the State, nor does it function as an organ of the State in the manner contemplated by the State Liabilities Act. It is a separate juristic person with its own distinct legal standing, capable of being cited and joined in proceedings in its own name. The citation is accordingly correct and this point *in limine* is dismissed.

Whether the applicants have *locus standi*?

The first respondent contends that the applicants were not validly elected as directors of the fourth respondent. It is argued that the Annual General Meeting at which they purportedly assumed office did not meet the quorum requirements prescribed by the company's constitution, rendering their election a nullity. On that basis, the first respondent submits that the applicants hold office illegally and cannot assert rights flowing from such an election. In support of this contention, reliance was placed on the dictum of Lord Denning MR in *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169, wherein it was held that an act which is void is a nullity and of no legal effect, incapable of being validated by subsequent conduct.

That argument is misplaced. The cause of action before this court is not the validity of the applicants' election, but the lawfulness of the administrative decision terminating their appointments. The applicants were directly addressed in their personal capacities and are the immediate subjects of the impugned decision.

Even if their appointment were later shown to be defective, they remain persons aggrieved by an administrative act. That is sufficient to confer *locus standi*. Further, the issue of quorum is a disputed factual matter requiring evidence and cannot properly be resolved as a point *in limine*.

The point *in limine* on *locus standi* therefore fails due to lack of merit.

On Urgency

The threshold for urgency in this jurisdiction is well settled. In *Kuvarega* v *Registrar-General & Anor* 1998 (1) ZLR 188 (H), CHATIKOBO J formulated the applicable test in the following terms:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning; a matter is urgent, if at the time the need to act arises, the matter cannot wait."

That formulation was adopted and applied by MAKARAU JP (as she then was) in *Document Support Centre (Pvt) Ltd* v *Mapuvire* 2006 (2) ZLR 240 (H), where the learned judge further clarified that the test is an objective one, she stated:

> "The test to be employed appears to me to be an objective one where the court has to be satisfied that the relief sought is such that it cannot wait without irreparably prejudicing the legal interest concerned."

The applicants were directed to surrender control of the fourth respondent to an unnamed interim administrator within seven days of service of the termination letters on 8 April 2026. The clock was therefore running from the moment of service. The threatened harm was immediate and concrete: displacement from elected office, involuntary transfer of assets and records of a corporate entity to an unidentified person operating under no known terms of reference, and the effective neutralisation of any pending review. The fourth respondent manages the intellectual property rights and royalty income of thousands of musicians across Zimbabwe. Disruption of its governance is not a mere internal corporate inconvenience, it carries real and potentially irreversible consequences for a significant constituency of rights holders.

Upon receipt of the termination letters, the applicants took legal advice and moved with reasonable expedition. There is no suggestion that they sat on their laurels or allowed the urgency to self-create through inaction. The first respondent's submission on urgency is accordingly dismissed. The matter satisfies the requirements of urgency in both form and substance.

Whether the application is competent?

The first respondent contends that the application is procedurally defective as it seeks to interdict an act already performed; hence is not properly before the court. This submission cannot be sustained.

It is noted that the relief sought is properly characterised as a stay of execution of an administrative decision, not an interdict of a completed act. The impugned decision, though

communicated on 8 April 2026, had not been fully implemented at the time of filing. The directive to surrender assets and control to an unnamed interim administrator remained outstanding and operative. The application was therefore directed at forestalling the implementation of a continuing administrative directive, not undoing an act that had run its course. The legal distinction between a decision and its execution is well established: the former may be taken, yet the latter remains open to judicial intervention where its implementation has not been completed. The relief sought is accordingly competent.

With all the points in limine having been dismissed, the matter proceeds to be heard n merits.

Applicable principles for interim relief

In an application for stay of execution, the applicable framework is broader than a pure interim interdict because such an application is hybrid in character. In *Sino Hydro Zim (Pvt) Ltd* v *Zimbabwe National Road Administration & Ors* S-27-19, MAKARAU JA described such an application as follows:

> "An application for stay of execution pending the determination of some other process by the court is a hybrid application. It combines the factors that a court takes into account when considering an application for an interim interdict generally and the factors that a court considers when granting an indulgence in an exercise to control and protect its own proceedings."

In both instances, the court must always bear in mind the balance of convenience and, more importantly, where the interests of justice lie.

The standard that an applicant must meet in seeking such relief is a demanding one. In *Chibanda* v *King* 1985 (1) ZLR 116 (H), the court stated that:

> "In an application for stay of execution of the judgment of the court, it is not enough for the applicant to merely allege hardship. He must satisfy the court that he may suffer irreparable harm or prejudice if the execution is granted... it must also be borne in mind that if the court were to extend mercy, it would be doing it at the expense of a litigant who has already established in court his right and title to what is being claimed. Such mercy should rather be sought in the action itself before judgment is given not afterwards."

The applicants in the present matter do not rest their case on mere allegations of hardship. The harm they face is concrete, immediate, and as will be demonstrated, incapable of adequate redress after the fact.

The requirements for the grant of interim relief are well established. An applicant must therefore establish: (a) a *prima facie* right, even if open to some doubt; (b) a well-grounded apprehension of irreparable harm if the interim relief is refused and the ultimate right is established; (c) that the balance of convenience favours the grant of the relief; and (d)

the absence of any other satisfactory remedy. **(See Makoni v Makoni & Anor HC 10218 of 2014).**

It bears emphasis that these requirements are not entirely discrete compartments, each to be considered in isolation. They are to be weighed holistically, and greater strength in one factor may compensate for relative weakness in another. The requisites for interim relief are interrelated considerations that together reveal whether the justice of the case demands that the status quo be preserved. Where the potential harm is grave and largely irreversible, the threshold for establishing a *prima facie* right need not be a high one; and conversely, a very strong *prima facie* right may justify interim relief even where the balance of convenience is less decisively in the applicant's favour.

Whether a *prima facie* right exists?

The applicants assert a *prima facie* right to remain in office as duly elected board members of the fourth respondent, grounded in their election at the October 2025 Annual General Meeting and in their entitlement under s 3(1)(a) of the Administrative Justice Act to administrative action that is lawful, reasonable and fair.

The first respondent contests this on two fronts. He argues that the AGM proceeded without quorum, only 242 of over 5 000 members attended, against a constitutional requirement of one quarter, rendering the election a nullity and the CR6 forms of no legal force. He further maintains that he acted lawfully within his regulatory mandate under s 82 of the Companies and Other Business Entities Act, and that the investigation conducted under s 39 revealed grave governance deficiencies justifying the action taken.

Neither submission by the first respondent is persuasive at this stage. On the quorum point, the respondent's own conduct forecloses the argument. The termination letters expressly address the applicants as board members whose appointments are being terminated. He cannot simultaneously maintain that they were never validly appointed and that there was an appointment sufficiently valid to be terminated. As DE VILLIERS JP observed in *Hlatshwayo* v *Mare & Deas* 1912 AD 242 at 259:

> "At bottom the doctrine is based upon the application of the principle that no person can be allowed to take up two positions inconsistent with one another, or as is commonly expressed to blow hot and cold, to approbate and reprobate."

In essence, the first respondent is approbating and reprobating. In any event, the quorum dispute requires examination of attendance and membership records not before this court and is not capable of resolution at this interlocutory stage. Moreover, the first respondent has not denied the averment that the appointment of the applicants was once

challenged and the application was dismissed. Until their election is set aside by due process, the applicants have a *prima facie* right to remain in office as duly elected board members of the fourth respondent.

Additionally, a consideration of the applicants' averments seems to show that there is a strong *prima facie* case of violation of the right to administrative justice. This arises from the undisputed facts that no prior notice of intended removal was given and that no opportunity was afforded to respond to the proposed termination. This strengthens the applicants' argument establishing a *prima facie* right.

Whether irreparable harm exists?

In *Mahachi & Ors* v *Officer Commanding Matabeleland South Province N.O. & Anor* HB-146-16, the court defined irreparable harm as:

> "a legal concept which refers to that type of harm which cannot be corrected through compensation or whose conditions cannot be put back where they were."

It is against that standard that the applicants' case falls to be assessed.

The standard applicable to this requirement was stated by DUMBUTSHENA AJP in *Chibanda* v *King* 1985 (1) ZLR 116 (H) (*supra*) where he stated that an applicant for a stay of execution must do more than merely assert that hardship will follow. The court must be satisfied that execution will visit upon the applicant harm that is irreparable in nature.

The applicants in the present matter do not rest their case on mere allegations of hardship. The first respondent denies that the applicants face irreparable harm. He contends that any management vacuum created by the dismissal was being addressed through the appointment of an interim administrator, that the process had already been initiated at the time of filing, and that the applicants, whose association with the fourth respondent is disputed and unlawful, have no legitimate interest in the manner in which the fourth respondent is administered by that administrator.

He further submits that the respondents themselves stand to suffer prejudice in their capacity as regulators if the applicants, who are responsible for the very governance failures that prompted the investigation, are restored to their positions.

These submissions do not withstand scrutiny. The prejudice to the applicants is concrete and immediate. They face displacement from elected office on the basis of a decision whose lawfulness is, at minimum, seriously arguable. The fourth respondent manages the intellectual property rights and royalty income of thousands of musicians across Zimbabwe. An unnamed interim administrator, operating without disclosed terms of

reference and accountable to no constituency of members, would exercise unchecked authority over the organisation's assets, accounts and distribution decisions during the period before the main application is heard. Financial transactions concluded and governance decisions taken in that period may prove difficult or impossible to undo once the applicants are restored to office, if that is the ultimate outcome. This is not harm that can be adequately quantified or compensated in damages after the fact. In any case reasonable fear or apprehension of irreparable harm suffices to satisfy the requirements.

As regards the respondents' own claim of regulatory prejudice: that prejudice, if real, consists of the continued governance of the fourth respondent by a board whose legitimacy is in dispute. But the answer to disputed legitimacy is legal process, specifically the pending main application, not the administrative fait accompli that the first respondent seeks to implement in the interim. The suggestion that the respondents suffer harm from the operation of a court order preserving the status *quo* pending resolution of a legal dispute is not a compelling basis on which to refuse relief.

The requirement of a well-grounded apprehension of irreparable harm is satisfied.

On balance of convenience

The first respondent submits that the balance of convenience favours refusal to grant the applicants the relief they seek, on the basis that the applicants were not lawfully appointed, that the interim administrator's appointment was imminent, and that permitting the applicants to continue in office perpetuates mis-governance to the detriment of the organisation's members.

However, in *Mupini* v *Makoni* 1993 (1) ZLR 80 (S) GUBBAY CJ stated that:

> "Execution is a process of the court, and the court has an inherent power to control its own process and procedures, subject to such rules as are in force. In the exercise of a wide discretion the court may, therefore, set aside or suspend a writ of execution or, for that matter, cancel the grant of a provisional stay. It will act where real and substantial justice so demands. The onus rests on the party seeking a stay to satisfy the court that special circumstances exist. The general rule is that a party who has obtained an order against another is entitled to execute upon it. Such special reasons against execution issuing can be more readily found where, as *in casu*, the judgment is for ejectment or the transfer of property, for in such instances the carrying of it into operation could render the restitution of the original position difficult."

The carrying of the first respondent's decision into operation would render restitution of the original position difficult, if not impossible. The balance falls the other way. If the stay is granted and the main application ultimately fails, the respondent loses nothing that cannot be addressed through lawful process once that determination is made. He retains all his regulatory powers and the ability to act on them in accordance with whatever the

Administrative Justice Act proceedings may determine. The status *quo ante,* which subsisted from October 2025, without apparent catastrophic consequences for the fourth respondent, will simply be maintained for the duration of those proceedings.

If the stay is refused and the main application ultimately succeeds, the position will be far harder to restore. An interim administrator will have operated the organisation for an indeterminate period under unknown terms of reference, resulting in financial and governance decisions whose effects may be irreversible. The pending review will have been pre-empted by the very conduct it seeks to examine. This court will not permit its own proceedings to be overtaken and rendered academic by the executive action that is the subject of those proceedings. As was stated in *Sino Hydro Zim (Pvt) Ltd* v *Zimbabwe National Road Administration & Ors* (*supra*) in applications of this hybrid character the court must always bear in mind where the interests of justice lie. The interests of justice here plainly favour preservation of the status *quo*.

The balance of convenience favours the applicants.

On absence of an adequate alternative remedy

The applicants also submitted that they do not have any alternative remedies. The first respondent did not, either in his dismissal letters or in his opposing papers, identify any right of internal review or appeal available to the applicants. As was held in *Vengesai & Ors* v *Zimbabwe Glass Industries Ltd* 1998 (2) ZLR 593 (HC):

> "Further the automatic stay of execution upon noting of appeal, as a rule of practice is, not a firm rule of law, but a long established practice regarded as generally binding, subject to court's discretion"

The filing of the Administrative Justice Act application does not automatically suspend the execution of the first respondent's decision; the seven-day deadline for surrender of assets and handover of control to the interim administrator runs regardless of any pending review.

There is accordingly no mechanism other than the relief sought in this application capable of preserving the applicants' position until the main matter is determined. The absence of an adequate alternative remedy is accordingly established.

DISPOSITION

The applicants have satisfied all requirements for the grant of the interim relief sought. The application accordingly succeeds.

In the result, it is ordered as follows:

INTERIM RELIEF GRANTED:

Pending the determination of this matter, the following relief is granted:

1. The execution of the administrative decision of the first Respondent dated 26 March 2026 terminating the Applicants' appointments as Board Members of 4th Respondent be and is hereby stayed.
2. The Applicants be and are hereby permitted to continue exercising their functions as Board Members of fourth Respondent without interference.
3. Any steps already taken to implement the first Respondent's decision be and are hereby stayed pending the confirmation of the final order sought herein.

For clarity, the final relief prayed for by the applicants on the return date is as follows:

TERMS OF FINAL ORDER SOUGHT

1. The execution of the administrative decision of the first Respondent dated 26 March 2026 terminating the Applicants' appointments as board members of fourth Respondent be and is hereby stayed pending the determination of the application in terms of the Administrative Justice Act issued by the Applicants in the High Court at Harare as Case Number HCH1741/26.

MUNANGATI-MANONGWA J:……..

Chinogwenya & Zhangazha, applicants' legal practitioners
Civil Division of the Attorney General's Office, first to third respondent's legal practitioners